

8.	26CV0681	PETER ELLIS VS. MATTHEW JOHNSON
DEMURRER AND MOTION FOR COURT SEALED DOCUMENTS FOR COURT TRANSCRIPTS		

Before the Court are two motions: 1) Demurrer filed by Defendants; and 2) Motion for Court Sealed Documents for Court Transcripts filed by Plaintiff.

DEMURRER

On February 20, 2026, Plaintiff filed a Complaint. Thereafter, Plaintiff filed a First Amended Complaint on April 27, 2026. The Proof of Service of Summons indicates that the Summons and First Amended Complaint were served by mail on May 2, 2026. However, Plaintiff did not indicate that two copies of the Notice and Acknowledgment of Receipt and a postage-paid return envelope addressed to him were included, nor did he attach the completed Notice and Acknowledgment of Receipt, rendering service defective.

On May 20, 2026, Defendants filed a Demurrer to Plaintiff's Complaint filed on February 20, 2026. As Plaintiff has filed a First Amended Complaint, Defendant's demurrer to Plaintiff's Complaint is moot.

MOTION FOR COURT SEALED DOCUMENTS

On June 18, 2026, Plaintiff filed a Motion for Court Sealed Documents for Court Transcripts. Plaintiff is requesting an order for the transcripts from the motion held on October 13, 2025, in department 2. No proof of service was filed. Accordingly, Plaintiff's motion is denied.

TENTATIVE RULING #8:

DEFENDANTS' DEMURRER TO PLAINTIFF'S COMPLAINT IS RENDERED MOOT.

PLAINTIFF'S MOTION FOR COURT SEALED DOCUMENTS FOR COURT TRANSCRIPTS IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY

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AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.